

NAPCS Unionization Research — State — Charter School Overview

Oregon — ERB (OR) Jurisdiction — May 9, 2026 (v3 — Reconciliation build)

NAPCS Unionization Research • May 9, 2026 (v3 — Reconciliation build) • Template v8.0

Section 1: State Overview

State	Oregon
Labor Board	ERB (OR) — Oregon Employment Relations Board
Governing Law	PECBA — Public Employee Collective Bargaining Act (ORS 243.650 et seq.). All district-authorized OR charter schools are public employers under PECBA/ERB jurisdiction. ERB (not PERB — a common error) administers collective bargaining for Oregon public employers including charter schools authorized by local school districts. NLRB applies only to independently incorporated charter operators authorized by the State Board of Education (rare — Oregon Virtual Academy is the primary example in this dataset).
Federal NLRB Jurisdiction	YES — NLRB Region 19 (Seattle) applies to state-board-authorized independently incorporated charter operators — not to district-authorized dependent charters. Oregon Virtual Academy (ORVA, North Bend SD 13-authorized but independently incorporated) organized under NLRB 19-RC-278342 (cert Aug 2021). The Ivy School (state-board authorized) is under NLRB 19-RC-384252. All 34 NAPCS OR schools are district-authorized dependent charters — ERB jurisdiction only.
Right-to-Work	NOT a Right-to-Work State — Oregon has no right-to-work statute. (Oregon is a non-right-to-work state. ORS Chapter 243 (PECBA) governs public employer charter schools (ERB jurisdiction). Union security clauses are permissible. Independently incorporated OR charter schools that are private employers under NLRA (NLRB jurisdiction) are also not subject to right-to-work — no Oregon right-to-work statute exists for either jurisdiction.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — ERB/PECBA does not provide a card-check certification pathway comparable to MA WMA or MN BMS PCE. Election required for new certifications in Oregon.
Registry Sweep	COMPLETE — May 6, 2026 — 128 charter schools searched
Research Window	March 2026 (initial); May 9, 2026 (reconciliation — Template v6.1 upgrade)

Section 2: Charter School Landscape

Total charter schools in Oregon: 128 (Charter School Registry v50 (NCES CCD 2024-25; 128 open OR charter schools as of May 2026)). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Organized Charter Schools in Oregon	122	95.3%	2 CONFIRMED (independent certifications) + 120 DEPENDENT (district-authorized, structurally covered by OEA district CBAs). Structural coverage is automatic — no school-specific ERB election required. Denominator: 128 open OR charter schools (Registry v50). Updated post-PDR-008 recode (June 2, 2026).
Independently Organized (CONFIRMED)	2	1.6%	Mosier Community School (C4102006) — OEA/District 21

			Education Association, ERB cert June 2014 (CC-007-14) + re-cert March 2026 (RC-003-26). Oregon Virtual Academy (ORVA, NAPCS-ADD-OR-001) — AFT-Oregon, NLRB 19-RC-278342, cert August 20, 2021, vote 85-16.
Structurally Covered — District OEA CBAs (DEPENDENT)	120	93.8%	All district-authorized OR charters. OEA has a local in every Oregon school district (199 of 199). Charter staff are district employees covered by district CBA from day one. Count updated post-PDR-008 recode (June 2, 2026): 120 STRUCTURAL_DISTRICT records.
Decertified / Formerly Organized	2	1.6%	Ridgeline Montessori (C4100004) — AFT Local 6432, cert Nov 2008, decert June 2011, NLRB jurisdiction. Lighthouse Charter School (NAPCS-ADD-OR-003) — ERB cert June 6, 2009, self-disclaimed Nov 9, 2016 (UC-010-16), no CBA ever ratified.
Total Charter Schools in Oregon	128	100%	Source: Charter School Registry v50 (NCES CCD 2024-25; 128 open OR charter schools as of May 2026).

Charter School Enrollment

Total Charter Enrollment	44,718 students — 8.2% of state K–12 enrollment (545,088 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	979 students in network-affiliated schools — 2.2% of total charter enrollment
Students in Organized Charter Schools	43,134 students (96.5% of charter enrollment)
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
Arthur Academy	CMO	6	6	—	979
TOTAL — All CMO/EMO Schools in Oregon		6		—	979

of which organized				—	—
--------------------	--	--	--	---	---

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in Oregon. Organized network schools: 0 organized schools in network-affiliated charters.

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.
‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

1 CMO (nonprofit). Approximately 122 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of May 9, 2026 (v3 — Reconciliation build).

1: Legal & Jurisdictional Framework

PECBA — Public Employee Collective Bargaining Act (ORS 243.650 et seq.). All district-authorized OR charter schools are public employers under PECBA/ERB jurisdiction. ERB (not PERB — a common error) administers collective bargaining for Oregon public employers including charter schools authorized by local school districts. NLRB applies only to independently incorporated charter operators authorized by the State Board of Education (rare — Oregon Virtual Academy is the primary example in this dataset). Oregon is not a right-to-work state (Oregon has no right-to-work statute.). Charter schools in Oregon are subject to NLRB jurisdiction as private employers (ERB (OR)). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter School Structure

Oregon operates 128 open-enrollment charter schools, enrolling approximately 44,718 students. 1 charter management organizations and education management organizations operate in Oregon. The largest networks by campus count are Arthur Academy (6 campuses in state). Approximately 122 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Oregon charter school labor coverage has been limited and primarily focused on two events: the May 2026 Ivy School NLRB election (which received regional coverage from OPB and The Oregonian given the unusual 31-2 employer victory and the Hawkins County jurisdictional significance), and the August 2021 ORVA/Evergreen Virtual Academy certification (85-16, AFT-Oregon, covered by OregonLive and statewide education press). The dominant structural story — OEA coverage of 123 district-authorized charters — has generated no press coverage because it is not a discrete organizing event. Education Week (2019) documented the broader national trend of declining independent charter organizing in structural-coverage states.

Stakeholder Communications

OEA (Oregon Education Association) is the sole organizing infrastructure for district-authorized OR charters — no school-specific campaigns are needed because coverage is automatic. AFT-Oregon organized ORVA (Evergreen Virtual Academy) in August 2021 and maintains the Oregon Virtual Academy Educators United local. ERB (Employment Relations Board) records are the authoritative source for OR charter labor history — not a public portal; access requires ContentDM REST API query or direct ERB records request.

Legislative Context

Oregon charter labor relations are governed by the Public Employees Collective Bargaining Act (PECBA), administered by ERB. All district-authorized charter schools are public employers — their staff are district employees, not charter employees.

The 2024 Valley Inquiry Charter (VICS) staffing transition — converting all staff to charter-direct contracts — is the first documented case in OR of a charter school exiting OEA district CBA coverage without a formal ERB decertification vote. This is a potential legislative and legal grey area: does VICS's unilateral staffing model change require an ERB process? No ERB case has been filed as of May 2026.

Section 6: Contract & CBA Access Registry

ERB (OR) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Mosier Community School	OEA/District 21 EA	Active — CBA not yet obtained	ERB records request needed
Oregon Virtual Academy (ORVA)	ORVA Educators United / AFT-Oregon	Active — CBA not yet obtained	AFT-Oregon website or NLRB FOIA